

THE AGE OF CONSENT ACT (1891) RECONSIDERED:
WOMEN'S PERSPECTIVES AND PARTICIPATION IN THE
CHILD-MARRIAGE CONTROVERSY IN INDIA

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A historic landmark in the social legislation of nineteenth-century British India was the Age of Consent Act of 1891, the culmination of the long-drawn child marriage debates of the 1880s.¹ On 19 March 1891, the Indian Penal Code and the Code of Criminal Procedure were amended so that the Age of Consent for girls was raised from ten to twelve years making sexual intercourse with unmarried and married girls below twelve years rape and punishable by ten years' imprisonment or transportation for life. According to the well-known reformer and historian of nineteenth-century India, S. Natarajan, this Act was the last measure of reform in India affected by influencing English public opinion, the first measure of reform for which Indian public opinion was aroused, the first time Indian leaders harnessed the potential of the Indian masses, and the first time that politics and reaction were successfully linked.² It is, therefore, little wonder that the age of consent controversy has become a major case-study for social and cultural historians of India.³

Over the past three decades, a vast body of scholarly literature has become available on this subject. The works most pertinent to this study are those that have resulted from the second wave of feminism in the 1970s. This saw a new shift in several disciplines, accentuating the absence of gender as a category in previous scholarship and showing a determination to remedy this through a new treatment of old issues.⁴ Later studies analysed how the category of *woman* was manipulated as a sign in the cultural contest for legitimisation between the coloniser and the colonised, and are valuable additions to women's history.⁵ However, what

¹ The 'age of consent' referred to the age at which the law recognised that an individual was eligible to give consent to sexual intercourse.

² S. Natarajan, *A Century of Social Reform in India* (London, 1959), pp. 82-3.

³ E.g., C. H. Heimsath, 'The Origin and Enactment of the Indian Age of Consent Bill, 1891', *Journal of Asian Studies*, 21:4, 1962, pp. 491-504, argued that the real importance of the Bill was in terms of the nationalist movement and the popular support won for Hindu orthodoxy.

⁴ In 1982, Meredith Borthwick, argued that the Age of Consent Bill provided a case-study in which Bengali women came to public prominence, 'as symbolic objects rather than as a group speaking on their own behalf'. See her article, 'The Bhadramahilā and changing conjugal relations in Bengal', in M. Allen and S. N. Mukherjee (eds.), *Women in India and Nepal* (Canberra, 1982), p. 116.

⁵ Dagmar Engels drew attention to the opposition between two gender systems in which the male control of female sexuality in Bengal was threatened by the dominant ideology of Victorian sexual values: 'The Age of Consent Act of 1891: Colonial Ideology in Bengal', in

is conspicuous about these analyses is the lack of women's perceptions and participation.⁶ Earlier studies have shown how there was more reaction than reformist zeal among Indian men during the passing of the Act. Surely it is pertinent to ask whether women raised their voices in support of the Bill and, if so, how did they counter the wave of reaction over a Bill which was supposedly meant for their welfare? Even if women's voices were muted, existing studies do not offer any explanations for the implied absence of agency amongst Indian women in the nineteenth century.⁷

This study addresses the problem of the invisibility of women in Indian history by charting the growth of consciousness among Maharashtrian women on the issue of child-marriage. More significantly, the oppositional discourse created by women is contrasted with that of the dominant male discourses, highlighting the differences between them. In the first section of this article the focus is on the origins of consciousness among women on the issue of child marriage in contrast to the discourse of the state and Indian men. The popular participation of women in the agitation against child-marriage and their lobbying techniques for legislation to raise the age of consent are the focus of the discussion in the second section.

Genesis of Women's Consciousness

Unlike Indian men, who were aroused on a mass scale by the publication of 'Notes on infant marriage and enforced widowhood' in August 1884 by Behramji Malabari, a journalist and reformer from Bombay, the first signs of women's consciousness on the issue came during the Rakhmabai-Dadaji episode. In 1884 Dadaji Bhikaji filed a suit for the restitution of conjugal rights in the Bombay High Court. He was married when he was twenty to Rakhmabai, who was then eleven years old. The

South Asia Research, 3:2, 1985, pp. 107-34. Most recently Mrinalini Sinha has argued that the evaluation of Indian (particularly Bengali) masculinity was a crucial element in the rationalisation of empire: 'The Age of Consent Act: The Ideal of Masculinity and Colonial Ideology in Nineteenth-Century Bengal', in T. K. Stewart (ed.), *Shaping Bengali Worlds, Public and Private*, (Michigan, 1989), pp. 99-127.

⁶ Two exceptions are the works of Geraldine Forbes and Barbara Ramusack who have studied women's participation for a later period (the Sarda Act, 1929). See Forbes, 'Women and Modernity: The Issue of Child-Marriage in India', *Women's Studies International Quarterly*, 2, 1979, pp. 407-19; Ramusack 'Women's Organisations and Social Change: The Age of Marriage Issue in India', in N. Black and A. C. Cottrell (eds.), *Women and World Change: Equity Issues in Development* (London, 1981); pp. 198-216. However, both these works assume that Indian women's participation in child marriage agitations began only with the Child Marriage Restraint Act of 1929.

⁷ The now familiar argument about a 'lack of sources' does not hold good here as there is ample evidence to the contrary. Many newspapers, both English and vernacular, carried reports of women's meetings, letters, articles and details of their memorials. The major source for earlier studies has been the 'Legislative Council Proceedings', which contain abstracts of women's petitions as well as speeches by Indian members of the Legislature, listing the numerous activities of women in support of the Bill. See Krishnaji Lakshman Nulkar's speech in *Extract from the Abstract of the Proceedings of the Council of the Governor-General of India*, 19 March 1891, Appendix A24 (hereafter cited as *Proceedings*).

marriage was not consummated as Rakhmabai reached puberty in her mother's home at a much later age, by which time the marriage had broken down irrevocably. Rakhmabai claimed that it was Dadaji's inability to earn an honest livelihood, his immoral lifestyle, his refusal to educate himself and his ill-health (he was in the intermediary stage of tuberculosis) which prevented her from living with him.⁸ The case took four years for a final resolution through two legal suits.⁹ In the second suit the ambivalence in the judicial discourse was evident when, accommodating the massive reaction that had occurred in Maharashtra, the court ruled that Rakhmabai would have to face imprisonment if she refused to fulfil her wifely duties.¹⁰ Rakhmabai chose imprisonment rather than live with her husband. Her defiant act was publicised by the astute Maharashtrian nationalist B. G. Tilak and other conservatives as showing the evil consequences of an English education, and was coupled with the sensational cry of 'Hinduism in danger'.¹¹

The case of Rakhmabai was intricately interwoven with the Age of Consent debates. The question of the consummation of marriage was of material importance to the restitution of conjugal rights. The ecclesiastical laws in English courts did not, as a rule, order a wife to go back to her husband when the marriage had never been consummated.¹² However, in the case of Rakhmabai, this was overruled by citing the custom of infant marriage in India whereby the girl-bride remained in her natal home until puberty when she was handed over to her husband's family in fulfilment of her marital obligations.¹³ In this sense the second verdict was the state's recognition of the cultural laws that governed Hindus, but the colonial government's retraction was read by women as a devious alliance between the

⁸ *Rukhmabai's Reply to Dadajee's 'Exposition'*, reprinted from the *Bombay Gazette*, 29 June 1887, *Law Tracts*, Bombay, 1887.

⁹ There was a third legal suit, too - a libel action by Dadaji against the *Bombay Gazette*, which had investigated the lifestyle of Dadaji and his uncle and validated Rakhmabai's version. On 5 July 1888, the Bombay High Court dismissed Dadaji's claims on sufficient evidence that he had suppressed information. Realising that he would lose any further suits, he negotiated an out-of-court settlement with Rakhmabai whereby she paid him Rs. 2,000 on the assurance that he would take no further legal action against her. This version of events, from a Marathi biography of Rakhmabai and based on new information, is the more credible because Dadaji's sudden interest in claiming his marital rights from Rakhmabai followed the news of her sole inheritance to a considerable estate from her mother's first marriage. The eventual resolution of the case also indicates Dadaji's concern for monetary considerations. See Mohini Varde, *Dr Rakhmābāi: Ek Ārth (The Saga of Dr Rakhmabai)*, (Marathi), (Bombay 1982), pp. 85-92.

¹⁰ In *Dadaji Bhikaji v. Rakmabai*, *Indian Law Reports*, 10 Bom. 301, 1886, pp. 572-79 (hereafter *ILR*).

¹¹ 'Hindudharmāvar ghāv ghālnareṇ navin trikuṭ' ('The new confederacy of three in assaulting Hinduism'), *Kesari* (Marathi), 20 September 1887, p. 2.

¹² Restitution of conjugal rights was not part of Hindu law but an importation from English ecclesiastical law. By the working of this law Indian women lost their traditional right (operative under customary law) whereby, in case of disagreement with the marital arrangement, they could choose to remain with their parents or guardians.

¹³ *ILR*, 10 Bom. 301, p. 575.

imperial and the Indian male. Expressing her disappointment, Pandita Ramabai wrote, 'They [the government] have promised to please the males of our country at the cost of women's rights.'¹⁴ On the other hand, Rakhmabai's defiance of the court order was understood by Maharashtrian orthodoxy as an educated woman's refusal to abide by the time-honoured Hindu tradition of remaining under her husband's protection.¹⁵

Between June and September 1885, Rakhmabai published a series of letters in the *Times of India*, on the subjects of infant marriage and enforced widowhood, under the pseudonym of 'The Hindu lady'.¹⁶ Her letters sparked a major conflagration among all sections of Maharashtrian society and were discussed minutely in the newspapers (including the women's press) right up to the end of 1885. Following the controversial Dadaji v. Rakhmabai case, the Government of India considered amending Section 260 of art. 14 of the Code of Civil Procedures of 1882 in so far as its provisions related to the execution of decrees for the restitution of conjugal rights and divorce. Leading Indian judges and administrators were requested to give their opinions, while no woman, however prominent, was asked her views on an issue that also directly concerned women's welfare too.¹⁷ Nevertheless, Maharashtrian women voiced their opinions through their own press, through literary writings and letters in the Anglo-Indian press, and by enlisting the support of British feminists. Rakhmabai followed closely the reaction to Malabari's 'Notes', which prompted her to express not only her own personal views but also the general feelings of the Maharashtrian women of the time. While acknowledging the gratitude of Indian women for his exertions, she constructed a gendered critique of child-marriage startlingly different from that of Malabari.

In her first letter Rakhmabai wrote that child-marriage had ruined her life:

I am one of those unfortunate Hindu women, whose hard lot it is to suffer the unnameable miseries entailed by the custom of early marriage.

This wicked practice has destroyed the happiness of my life.¹⁸

Her observations were also drawn from the lives of female friends, thus formulating general propositions based on the combined experiences of women. With her

¹⁴ Letter to Dorothea Beale, 22 May 1887, in A. B. Shah (ed.), *Letters and Correspondence of Pandita Ramabai* (Bombay, 1977), p. 175.

¹⁵ Rumours abounded among conservative groups that women were being encouraged to defy their guardians by male reformers so that attendance at the female schools run by Pandita Ramabai would increase significantly, *Hindu Punch*, 12 February 1891, reported in the *Bombay Native Newspaper Reports* (hereafter *NNR*), 14 February 1891.

¹⁶ It was a common feature among women during this period to use pseudonyms, probably prompted by fear of the awesome reaction in Maharashtra against the abolition of child-marriage. However, the pseudonyms indicated their gender and were validated by citing their marital status or class. It was a clever strategy to say, for example, 'from a mother of three children', thus privileging their experience over that of men. It at once gave them a superior position to quote the evil consequences of child-marriage on women as opposed to men.

¹⁷ This pattern was repeated in the age of consent controversy, too.

¹⁸ 'A Hindu Lady', 'Infant Marriage and Enforced Widowhood', *Times of India*, 26 June 1885, p. 4.

mother Jayantibai, Rakhmabai was a regular attendee at the weekly gatherings of the *Prarthanā Samāj* and meetings of the *Ārya Mahilā Samāj*.¹⁹ Here she had ample scope to relate to women with a fairly developed consciousness about women's rights. She began her analysis with the statement that the institution of child-marriage cut across caste and class considerations and adversely affected all age and sex groups, but 'women', she concluded, were its 'greatest victims'.²⁰

Infant marriage, according to women, was the most persistent obstacle to the psychological development of the female sex, stultifying a women's personality through the denial of higher education. The issue of female literacy preoccupied the attention of Maharashtrian women throughout the second half of the nineteenth century. The need for and nature of education, and the obstacles to its achievement were such an integral part of women's consciousness that it ended in splitting them into two groups - traditionalists and moderates - according to the ideology they professed.²¹ However, the relevant strand for discussion here is how was child marriage viewed as the greatest hurdle in the mental development of the female sex? Women believed that the structure of Indian marital relationships based on clan, caste and kin cramped the physical space and liberty of expression of women.

Giving graphic details of the life-style of a girl before and after marriage, Rakhmabai drew an accurate picture of how the imposition of a code of behaviour, forms of speech and a strictly regimented life, robbed the girl-wife of all incentive to develop individuality. In her opinion, control through the hierarchical relationships of the in-laws' home aimed, 'to make the girl as docile as a beast and as submissive as a slave'.²² If the girl was married at the age of seven or eight the domestic code actively cajoled her to please rather than displease, to agree rather than disagree. Writing about how she became aware of *stri-sudharana* (improvement in the position of women), a prominent female leader from Amravati, Yashodabai Joshi, recalls the oppressive atmosphere in her in-laws' home which she refers to as 'just plain slavery'.²³ The control exercised by in-laws was so absolute that without their permission not even a pre-pubescent girl-wife residing at her parents' home could go to school. This belief reverberates in numerous letters to the editors of women's magazines, besides the memoirs and semi-fictional writings of women written during the late nineteenth century.²⁴

¹⁹ Various women's *Sabhas* (committees), operating in Bombay in the 1870s, were amalgamated and brought under the common platform of the *Ārya Mahilā Samāj* by the charismatic Pandita Ramabai.

²⁰ 'Infant Marriage', p. 4.

²¹ P. Anagol-McGinn, 'Women's Consciousness and Assertion in Colonial India: Gender, Social Reform and Politics in Maharashtra, c. 1870-1920', (forthcoming) Ph.D. thesis, (SOAS), 1993, chapter 2.

²² 'Infant Marriage', p. 4.

²³ Y. Joshi, *Āmchī jīvanpravās* (*The Journey of Our Life Together*), (Pune, 1965), p. 18.

²⁴ Champubai Madhavrao Nadkarni, letter to Editor, *Ārya Bhagini*, (Marathi), 28 July 1891; Dhakbai Trimbakram Desai, letter to Editor, *ibid.*, 1 November 1891; also opinions of Ahalyabai Morevale, Krishnabai and Lanibai Dhurandar, *ibid.*, January 1893.

Contrasting the picture of a girl-wife with that of a boy-husband, Rakhmabai further noted that child-marriages 'do not entail on *men* half the difficulties which they entail upon *women*.'²⁵ According to her, men enjoyed full marital and physical freedom, and religion and custom did not interfere in any way with their liberty. In her opinion,

Marriage does not interpose any insuperable obstacles in the course of their studies. They can marry not only a second wife, on the death of the first, but have the right of marrying any number of wives at one and the same time, or any time they please. If married early, they are not called upon to go to the house and to submit to the tender mercies of a mother-in-law; nor is any restraint put upon their actions because of their marriage. But the case for women is the very reverse of this.²⁶

Men, she argued, protected the interests of a male child, whether it was over the right to education or re-marriage, and actively connived in prohibiting the mental development of women. Unlike the modernising discourses of liberal men who argued that the education of women would gradually lead to the abolition of child-marriage, women argued, to the contrary, that it was precisely the institution of child-marriage which placed obstacles in the way of female literacy.

If we turn to the male liberal discourse on the age of consent issue, a totally different picture emerges. In the 'Notes' circulated by Malabari, he constructs a powerful picture of Indian society, characterised by incapacitated adults, sickly children, over-population, and acute poverty leading to epidemics. The consequences of child-marriage in his view were,

the breaking down of constitutions and the ushering in of disease. The giving up of studies on the part of the boy-husband, the birth of sickly children, the necessity of feeding too many mouths, poverty and dependence...²⁷

He insisted that the state had to address the question of child-marriage on the purely economic grounds of 'over-population in poverty'. Eugenics and public health were powerful strands of argument in such indigenous discourse as seen in attempts to reform cultural practices.²⁸ M. G. Ranade, an influential reformer, argued for legislation mainly on the grounds of checking the reproduction of a weak race and hence the economic ruin of India. He argued that early marriage led to premature consummation and resulted in the physical deterioration of the race; it diverted the attention of youths from their studies, checked enterprise and filled the country with

²⁵ 'Infant Marriage', p. 4.

²⁶ *Ibid.*

²⁷ B. Malabari, *Notes on Infant-Marriage and Enforced Widowhood*, p. 3, in *Government of India, Home Department, Selections from the Records*, Serial No. 3, V/23/49/223, India Office Library, London (hereafter IOL).

²⁸ Management of the nation's health was an integral part of liberal discourse on child-marriage as early as the 1890s, and the 1920s re-opened debates built on this strong tradition, contrary to what Martina Michel seems to suggest in her study of the Sarda Act. See M. Michel, 'The Sarda Act, Political Strategy and Trends in Discourse in the Child-Marriage Debate in India during the 1920s', unpublished M.A. dissertation, Hannover, 1989, p. 121.

weaklings bred of over-population.²⁹ He also argued for state interference on the ground that Indians were incapable of self-help due to their bondage to the past.

What is of significance to the discussion here is the singular absence in the indigenous discourse of a gendered critique for the raising of the age of consent. It could be argued that elites of progressive opinion used health arguments as a tactical move in order to manoeuvre the state into overcoming its promise of non-interference in domestic matters. However, opinions expressed by liberals on other vital questions of women's education used the same 'rejuvenation of the race' theories. Dr Kirtikar, for example, President of the Paṭare Prabhu Reform Society, argued in several lectures that the only reason why a woman was entitled to education was because she was the 'mother of the Indian race', and hence had to have a good knowledge of health and hygiene in order to raise strong and healthy children.³⁰

The failure to admit gender inequalities is blatantly exposed by another trend in Indian liberal discourse. Liberals and conservatives alike argued that women themselves were active proponents of the institution of child-marriage and opposed all reform. An *inamdar* of Dharwar, Tirmal Rao Venkatesh, skilfully drew a picture of the origins of infant marriage as a recent phenomenon, owing entirely to 'the whims of females, belonging to rich families, who not only put up, but compel their male members to bring about infant marriages...'³¹ According to him, the reason why female relatives of the bride and groom were doing so was 'for the sake of enjoying the fun and pleasure of going through the ceremonies attendant upon such marriages'.³² However, it was the non-interventionists, or 'reform from within' group, who successfully framed women as the chief culprits. The gist of their arguments were that women in India were conservative by nature, that they imbibed the claptrap of Hindu tradition more effectively than men, first in their parents', and subsequently in their in-laws', home, and that by the time they reached middle age they personified orthodoxy itself. Therefore, legislation would make no difference and child-marriage would only disappear with modernisation.³³

In contrast to this discourse stood women's own views. They agreed that many women did block reforms but, from studying the conservative attitudes of women, they concluded that centuries of conditioning brought on by man-made shastras could not be wiped out in a few years. Women like Krupabai were consistent in their opinion that Hindu men jealously guarded their rights through the connivance of Brahmanical priests. Men, she said, treated women as 'mere appendices to their own great selves'. An educated bride was also by no means welcome to a man because, 'The fact of his wife being in any way above him will be

²⁹ M. G. Ranade, 12 February 1885, *Selections from Records*, p. 92.

³⁰ Dr K. R. Kirtikar, *An Address on the Occasion of the Second Anniversary of the Saddharma Samaj of Thane*, 20 July 1883.

³¹ Letter, 30 December 1884, *Selections from Records*, p. 55.

³² *Ibid.*, p. 57.

³³ See the reports and letters of Pandurang Balibhadra, Narayan Bhikaji, Deputy Collector, Nasik; Dr Bhikajee Amroot Chobhe, Assistant Surgeon, Pune, in *Selections from Records*, pp. 49, 63-5, 143.

gall-wormwood to his inflated, self-satisfied nature'.³⁴ This male conspiracy, she contended, led to the situation where

a majority of our women resort to the most pernicious habit of gossiping about their neighbours, and quarrelling among themselves. Poor souls! They are not to be blamed; they know of no higher mode of existence: there is nothing to occupy their minds, no interest is taken in them: they are treated as toys and humoured with gilded trinkets or any such trifles.³⁵

How did women react to this situation? Krupabai maintained that, 'women are born and brought up to think themselves inferior... They finally learn to extract pleasure from housekeeping and dressing up'.³⁶ Even though women were inured to their pitiful existence, she argued for the abolition of infant marriages altogether as the only way women could in practice share men's freedom and rights.³⁷ Rakhmabai summed up this view when she wrote: 'Reduced to this state of degradation by the dictum of the shastras, looked down upon for ages by men, we have naturally come to look down upon ourselves'.³⁸

Women, therefore, pleaded that state intervention was not just desirable but essential. They believed that abolition of child-marriage would enable them to take advantage of higher education and that this would restore a necessary sense of dignity and pride in women's ability to plead their own cause.

A significant trend in the women's literature of the time entailed a proposed restructuring of the institution of marriage. Thus arose an analysis of 'why' and 'how' the Hindu marriage system maintained such absurd customs as child-marriage. The reasons proposed by them were radically different from those of Indian men. There was no engagement with shastric injunctions on the primacy of the marriage consummation ceremony or *garbhadāna* ceremony (literally, 'gift of the womb') which characterised indigenous male discourse. Instead, they traced child-marriage to the financial considerations of the boy's parents, the anxiety of the girl child's parents due to the low status accorded to the female sex, and the psychological need for a woman to be a mother-in-law in order to gain access to power in a Hindu joint-family.

Taking up the issue of monetary transactions, they condemned the system of *hunḍā* (dowry) as the main reason why parents of male children succumbed to the institution of child marriage. Parents of female children constantly worried about them and were in the habit of sounding out the marriage negotiator who was either the family priest or a close relative. The latter found a suitable groom; the prospects of finding a better groom were relatively dependent on the size of the dowry. The anxiety of parents about a girl remaining unmarried led them to marry her early or, if poor, they would wed their daughters to widowers to reconcile them

³⁴ K. Sathianadhan, 'Female Education', in *Miscellaneous Writings of Krupabai Sathianadhan* (Madras, 1896), p. 19.

³⁵ *Ibid.*, p. 21.

³⁶ *Ibid.*, p. 27.

³⁷ K. Sathianadhan, 'Hindu Social Customs', in *Miscellaneous Writings*, pp. 25-31.

³⁸ 'Infant Marriage'.

to being second or third wives to elderly men.³⁹ Women empathised with a girl-child's status within a household which led them to view women who promoted child-marriage with a degree of tolerance. Many women held the opinion that a girl-wife did not enter her husband's house to be the sole mistress but as the lowest in the hierarchy of family members and occupied the humblest position. The only way a woman could exercise any power was to bear sons and arrange their marriages as soon as possible in order to reach the exalted status of the mother-in-law.⁴⁰

Another strand in women's arguments was their insistence that raising the age of marriage for girls alone would not be effective in practice: the age of consent for boys had to be raised too. This argument centered round the inability of a young husband to face the wrath of the conservative members of his family even if he encouraged the education of his girl-wife. Personal narratives and the biographical and semi-fictional writings of women discussed the economic dependence of youthful husbands on their extended family and how these ties effectively prevented them from protecting their wives' efforts to educate themselves.⁴¹ Autobiographical accounts of women who participated in the age of consent agitation clearly reflect how women were left to their own devices in countering the opposition of in-laws without the support of their husbands.⁴² Ramabai Ranade, recalls in an autobiography which became a classic of Marathi literature, how about fourteen widowed aunts, cousins, and a sister-in-law, along with her step-mother-in-law in the vanguard, formed an orthodox camp within the household to torment her when she persisted in educating herself. Their allegations that she was neglecting her household duties were unjustified as she used to get up at dawn in order to make time for her education. Of much more significance was the feeling of betrayal felt by the young Ramabai when her husband, M. G. Ranade, a great stalwart of reform, never admonished the relatives who were tormenting his wife. In 1882 Ramabai addressed a large gathering in support of the movement for higher education for women. When her step-mother-in-law found out, she persecuted her in various ways. Ramabai recounts her pain when her husband said nothing to defend her from such domestic abuse.⁴³ It was the unanimous view of women writing on this subject that, in the face of such formidable circumstances, only a very few courageous young women would continue to educate themselves.

³⁹ See articles by Anandibai Lad on 'Lagnyāchī chālī', ('Marriage Traditions'), and 'Lāukar lagna karnyachī chal' ('The Custom of Child-Marriage'), in *Ārya Bhaginī*, March 1886.

⁴⁰ Pandita Ramabai, *The High-Caste Hindu Woman* (London, 1888), especially chapters 2 and 3.

⁴¹ S. M. Nikambe, *Ratanbai: A Sketch of a Bombay High Caste Hindu Young Wife* (London, 1895).

⁴² R. Ranade, *Āmchya āyushyāthil kāhī ātavanī* (A Few Reminiscences of Our Life (Pune, 1910). An English translation is available by K. Deshpande, *Ranade: His Wife's Reminiscences* (Bombay, 1963), pp. 42-68.

⁴³ M. G. Ranade may not always have been a witness to the tortures Ramabai endured yet there were instances when she fell sick due to her mother-in-law making her undergo ritual baths in cold water in winter months every time she went out for a lecture, meeting or study class. Even on such occasions her husband did not intervene.

If, instead, girls were married after the age of fourteen, they would benefit from the extra time within their parents' home and thus their chances of a higher education would be greatly increased.

The indifference of Indian men to the suffering the female sex endured on account of child-marriage was angrily noted by women. Writing in Marathi journals, women expressed their shock and disgust at the cowardice of men in facing reality. Their studied discourtesy and contempt for 'reformers' correspondingly form an important factor in women's implicit belief in the efficacy of the colonial government. After the replies of leading men to Malabari's proposals had been published, women wrote at length expressing their annoyance, not at the 'opinions of the old-fashioned, credulous and religious older generation', which they felt were comprehensible, but at the 'opinions of young learned men who aped modern ideas only as far as dress and diet were concerned while they were actually worse than conservative people'.⁴⁴ The reference here was to the 'reform from within' group who opposed legislation. Among women a special phrase had been coined for hypocritical reformers - *pōṭepurte śikhalele lōk* (literally, those who gain a Western education not for self-improvement but merely to look after their stomachs).⁴⁵ 'Sati', argued one woman, 'would never have been abolished, left to the Indians, but was the greatest favour done by the British government, for saving thousands of lives of women from the agonies of the fire'.⁴⁶ She, and others like her, urged the government to show the same firmness of conviction over the age of consent issue.

A solidarity between Hindu, Christian and Jewish Indian women is discernible over the Rakhmabai case and the age of consent controversy. These episodes also provided the first instances when British feminists successfully allied with Indian women. The uniting ground was the realisation that it was the rights of women that was the crux of the debates, rather than the rhetoric used by men which made the age of consent debate seem to be between traditionalists and reformists, those for or against legislation, and Western, as against Eastern, religion. Maharashtrian women enlisted the support of British feminists both for guidance as well as to mobilise strength for propaganda purposes. It has been argued that in the nineteenth century European medical men were effectively performing the function of maintaining the image of the physical and moral superiority of the ruling race.⁴⁷ Their counterparts, the imperial medical women, were also, in effect, performing a similar function on behalf of Indian women. Much of the medical evidence cited by Indian women in support of the agitation came from European female doctors who gave lectures on eugenic theories of weak and sterile populations issuing from the Indian race due to the effects of child-

⁴⁴ See 'Sāmājīk sudhārāṇā' ('Social Reform'), *Ārya Bhagini*, June 1891, p. 51.

⁴⁵ 'Gauḍ Sāraswat Brāhmaṇ strī' (pseudonym), a 'Gaud Saraswat Brahman Lady,' letter to the editor, *Ārya Bhagini*, p. 52.

⁴⁶ 'Ekā suśīkṣīt strī kaḍun' ('By an Educated Lady'), 'Gulābbai āṇi Śevatībai yāñchā bodhpar saṃvād' ('Instructive Debates Between Gulabbai and Sevatibai'), *Ārya Bhagini*, July 1891, pp. 60-1.

⁴⁷ D. Arnold, 'Medical Priorities and Practices in Nineteenth-Century British India', *South Asia Research*, 5:2, 1985, pp. 167-83.

marriage.⁴⁸ At Rakhmabai's request, Dr Edith Pechey-Phipson assumed leadership of this movement and along with a few influential Indian women they formed 'The Hindu Lady Fund', to raise Rs. 5,000 for costs incurred by Rakhmabai over the second suit.⁴⁹ Pandita Ramabai launched a scathing attack on the government's inertia through letters and articles in influential newspapers while the Indian National Association publicised her case in England. Rakhmabai struck up a long-standing friendship with British feminists who eventually helped her to leave India in March 1889 to pursue a medical education in London.⁵⁰ Indian women's reliance on imperial feminists significantly reflects their loss of faith in Indian men.

Conjugal Incompatibility and Child-Marriage

One of the prime concerns of women in their programme of restructuring Hindu marriage relations arose from their analysis of the unhappiness of Indian wives within the system of arranged marriage and the absence of choice of partners. They linked wives' discontent to the prevalent institution of child-marriage. Malabari had made a fleeting reference in his 'Notes' to unhappy unions in Indian marriages due to child-marriage, though he did not go on to argue that the government should intervene on this ground. However, the replies to his 'Notes' were silent on this issue, except for the well-known reformer R. G. Bhandarkar, who insisted that there were no 'ill-assorted marriages' in India!⁵¹ Liberal discourse did not acknowledge the existence of unhappiness in child-marriages.

We should turn for a moment to the women's views to see whether they considered incompatibility and ill-treatment to be the main effects of child-marriage and, if so, what remedies they proposed. Among women there was a unanimity of opinion about child- and arranged marriages creating tensions between couples. There was no genuine affection between a husband and wife in India, wrote a woman to *Ārya Bhagini*, because both were too young to know the meaning of love and merely accepted a mechanical imposition of the duties and obligations on them.⁵² Gulabbai recalled what a farce her whole marriage was to her:

When I was 11 years old I was married to my husband who was then 13 years of age. When they sent me to my in-laws, I remember crying my heart out the whole day. He used to go to school and to me it appeared he was making merry the whole day and when he returned home he was immersed in play with his friends. We started to live together with the fact thrown upon us that he is a husband and I am a wife, there was

⁴⁸ Dr E. Pechey-Phipson, *Address to the Hindus of Bombay on the Subject of Child-Marriage*, Bombay, 11 October 1890, IOL Tracts 799.

⁴⁹ British and Indian women included Mrs Greton Gary, Dr Edith Pechey-Phipson, Mrs Lytton, Mrs Portman, Lady Cowasjee Jehangir, Mrs Bhaunagri: Varde, *Dr Rakhmabai*, p. 64. Some details are reported in *Jame-Jamshed*, in *NRR*, 16 March 1887.

⁵⁰ See Varde, *Dr. Rakhmabai*, pp. 97-114, for details.

⁵¹ R. G. Bhandarkar, 24 February 1885, *Selections from Records*, pp. 133-4.

⁵² Ekā suśikṣit strī kaḍuṇ, 'Gulābbai āṇi Śevatibai yāncā bodhpar saṃvād' ('Instructive Debates between Gulabbai and Sevatibai'), *Ārya Bhagini*, pp. 52-3.

nothing beyond this... What happiness can one see in such a relationship?⁵³

Many women wrote about the bewilderment that a young girl experienced with the onset of puberty and the sudden enforcement of sexual duties. The mental immaturity of the girl-wife, they argued, built up resentment within her and allowed conjugal strife to set in.⁵⁴ Incompatibility was usually a result of child marriage, wrote Girijabai in a compilation of her essays and lectures. The girl-wife's immaturity created a barrier to communication between them, and her husband (who was usually older than her) could not rationally convince her of anything that he considered important. For this reason alone she stood for restraining girls below fourteen and men below twenty from marrying.⁵⁵

If a union of minds was unlikely in this set-up then what was the solution? Instead of child-marriage, women showed a strong preference for adult marriages and choice of partners rather than arranged marriages. They attributed domestic strife to the discontent and unhappiness of young wives, and came up with the radical suggestion that choosing a spouse should not be men's prerogative but that women should be consulted too.⁵⁶ This was the main reason why *swayamvar* (the ceremony by which a woman chose her spouse in an open competition between male suitors and supposed to have been in vogue in ancient India), was enthusiastically proposed, rather than as a cultural defence, as was the case with revivalist and nationalist discourse.⁵⁷

The Marathi journal *Māsik Manoranjan* interviewed various prominent Maharashtrian women activists who had participated in the age of consent agitation. Among these, it is worth discussing the views of Kashibai Kanitkar who was an important member of the *Ārya Mahilā Samāj*. She is reported to have said that

⁵³ *Ibid.*, pp. 52-3.

⁵⁴ Kashibai, the female biographer of Anandibai Joshi, records the fearful delusions of the nine year-old Anandibai who refused to enter her husband's bedroom for days because she thought there was a tiger there!, K. Kanitkar, *Sāu. Da. Ānandibai Jōśī yāñce caritra* (*Biography of Mrs Dr Anandibai Joshi* (Pune, 1888), p. 2. Gangutai, recalls her intense repulsion at the term *nāurā* (husband) due to a childhood experience of sexual assault. G. Patwardhan, *Chākoribāher: Ek ātmakatan* (*Beyond the Courtyard: An Autobiography*), (Pune, 1974), pp. 2-3.

⁵⁵ G. Kelkar, 'Tarunpiḍi va sāmājik sudhāraṇa', ('The Younger Generation and Social Reform', in *Grihiṇī Bhūṣaṇ, Bhāg Dūsrā, Puṣpahār*, (*Guide-Books for Women, Part Two, A Garland of Flowers*) (Jalgaon, 1921), pp. 72-84.

⁵⁶ Anandibai Lad, 'Laūkar lagna karnyachī chāl', *Ārya Bhagini*, p. 5; and K. Sathianadhan, 'Female Education', *Miscellaneous Writings*, pp. 16-17.

⁵⁷ It is, therefore, simplistic to state that all women who rejected the 'Golden Age' theory (of a supposedly glorious ancient Indian past, a notion given currency by Orientalists) became feminists and those who did not remained in the traditional mould, as has been argued by Uma Chakravarti, 'Whatever Happened to the Vedic *Dasi*? Orientalism, Nationalism and a Script for the Past', in K. Sangari and S. Vaid (eds.), *Recasting Women: Essays in Colonial History* (New Delhi, 1989), pp. 27-87. Women utilised the 'Golden Age' theory in more complex ways in their emancipatory programmes: see Anagol-McGinn, 'Women's Consciousness and Assertion in Colonial India'.

ninety-nine percent of marriages were unhappy ones, but that the degree of unhappiness could be considerably reduced by raising the age of consent. According to her if human beings were married at a very young age they would later on say, 'I was deceived, I was cheated', and rebel against the marriage bond.⁵⁸ Her opinion was that no girl should be below fourteen and no boy below twenty at the time of marriage, and that both sexes should have the freedom to choose their partners so that in the event of a breakdown in their marriage, 'they will not point fingers at others but at themselves'.⁵⁹ Her argument was that the responsibility in such a vital issue as marriage should be shouldered by adults alone rather than by children.

Women were acutely aware of the romantic notion of Indian womanhood propagated by Orientalist and revivalist discourse, but contested it strongly. The *Subodha Patrika*, the official organ of the *Prarthanā Samāj*, reported the views of the famous Indologist, Max Müller, on the issue of child-marriage. He idealised Indian marriages, believing that love and affection were generated in infant marriages through the mere fact of the child-spouses growing up together in one home. Thus he implicitly endorsed the idea that domestic harmony reigned in arranged marriages. The women's magazine *Ārya Bhagini* criticised him for his lack of first-hand experience of India and his excessive reliance on a textual knowledge of the East. Sevati Bai tells her friend that

Max Müller saheb is living in a foreign country and will do so forever. He has no first-hand knowledge of an average Indian nor of the behaviour and conduct of our men. Therefore the statements made by the saheb are not uniformly applicable to everyone of us. Among cases of child marriage only around four or five couples out of a hundred live in a state of mutual love and harmony. And around ninety couples do not experience this state of love and affection: instead there is constant bickering and quarrelling in the home.⁶⁰

The analysis of child-marriage led women to believe that it was the cause of domestic unrest and of misery to child wives, and so they called for control of conjugal relations through raising the age of consent.

Public Participation of Women: Meetings and Memorials

The first memorial proposed by women from the Bombay Presidency was done through the collaboration of British feminists in Bombay and London. In the middle of 1890 the work of a Women's Committee supporting the Age of Consent Bill in Bombay was reported in leading newspapers. This Committee consisted of influential English and Maharashtrian women.⁶¹ Their counterpart in London was Millicent Fawcett who lobbied through the Indian National Association for

⁵⁸ Quoted in S. Vaidhya, *Śrīmatī Kāśibai Kānitkar: Ātmacharitra āni Charitra (Mrs Kasibai Kanitkar: Autobiography and Biography)*, (Bombay, 1979), p. 231.

⁵⁹ *Ibid.*, pp. 231-2.

⁶⁰ Ekā suśikṣit strī kaḍuṇ, 'Gulābbai āni Śevatibai yāṇcha bodhpar saṃvād', *Ārya Bhagini*, September 1891, pp. 78-9.

⁶¹ Lady Reay and Dr Pechey-Phipson were the British representatives; the Indian women were Rakhmabai Modak, Pandita Ramabai, and Dr Rakhmabai.

legislative action by the government as an 'act of conscience'.⁶² The Women's Committee decided to send a memorial addressed to the Queen with two thousand signatures of Maharashtrian women. The signatories' social position and caste were to be indicated, too, but in order to protect their interests, their identity was to remain confidential and was not to be revealed to the press.⁶³

The memorial pleaded for 'the necessity for legislation in the interests of child-wives and other female minors'. The remedy they sought was that 'the criminal law in India may be so altered as to protect at least girls under fourteen from their husbands as well as from strangers'.⁶⁴ The petitioners pointed out the absurdities and anomalies in the criminal law of 1860 which fixed the age of consent for English girls at twelve and for Indian girls at ten. They argued that in India girls did not normally attain maturity before fourteen, basing their contention on the medical observations of European women doctors in India.⁶⁵ They pointed to the anomaly in the law whereby a girl of eighteen could not validly consent to grievous harm to her person, but she could to rape. Also a girl under twelve could not validly consent to the removal of jewels from her person, but she could to 'the theft of her honour'.⁶⁶ Finally, they argued that the Queen's 'keen maternal interests' in her subjects should influence her to take action to redeem the status of her weakest subjects - the women of India - and make the law in India conform to the English law.

Between the despatch of the first memorial (December 1890) and the deliberations of the Viceregal Council on the Bill (March 1891) a great deal of activity was reported among women. At least eight women's meetings are reported to have been held in western India and one in Bengal to consider aspects of the Bill and to pass resolutions and write new petitions.⁶⁷ The average attendance at them varied between seventy-five and two hundred and fifty. The gatherings were always in urban centres like Pune, Bombay, Amravati and Ahmadabad, and

⁶² *Induprakāśa*, 22 December 1890, p. 3.

⁶³ The memorial itself was published in verbatim in all the leading newspapers: *Marāṭha*, 14 December 1890 and *Induprakāśa*, 6 October 1890.

⁶⁴ Memorial of 1,600 women of India to Queen Victoria, sent by W. Lee Warner, Secretary to the Government of Bombay, 30 December 1890, in 'Papers relative to The Bill to Amend The Indian Penal Code and the Code of Criminal Procedure, 1882', *Proceedings*, April 1891, Appendix N.

⁶⁵ Besides citing statistical evidence for the grievous consequences of early consummation, which resulted in child retardation and maternal mortality, the memorialists suggested the likelihood of a sterile population resulting from child-marriage: see Memorial of Lady Doctors in India, signed by Monelle Mansell and forty nine others, 22 September 1890, *Proceedings*, Appendix A15.

⁶⁶ Memorial of 1,600 women of India, *Proceedings*.

⁶⁷ Mrs Ghosal of Calcutta, under the pseudonym of 'Śrīmatī' ('Mrs') informed the *Statesman* that at a private meeting of middle-aged Hindu ladies, a unanimous verdict was passed in favour of Sir Andrew Scoble's Age of Consent Bill. She said, 'Trustful of the government, the ladies hail any legislation that aims at an amelioration of the nameless doom to which among others, the married girlhood of India are subjected': *Induprakāśa*, 16 February 1891, p. 3.

consisted entirely of educated, middle-class women. It seems likely that the women were galvanised into action due to the massive reaction to the Bill.

An innovation in agitational technique was the holding of public meetings of gigantic proportions by men organised on a caste or professional basis. Unscrupulous methods were used to recruit large numbers both for meetings and petitions.⁶⁸ While women successfully adopted the new form of agitation of holding public discussions, they condemned the methods of their male opponents. An important item on their agenda was to inform the government of the unscrupulous practices used by the anti-legislationists. Orthodox Hindus in Maharashtra did apparently feel the women's meetings to be a threat. Tilak, the leader of the opposition, writing in the *Kesari* and *Mahratta*, registered the unity of women over the Bill, but tried to dismiss their memorials as ineffective.⁶⁹ Some sensational vernacular papers, representing reactionary views, reported that anti-legislationist groups intended to break the influence of liberal women by organising their wives and sisters to hold counter-meetings.⁷⁰ However, no reports of such subversive meetings by women are recorded and this merely suggests the fears of orthodoxy in the face of a united female force.

If the opposition in Maharashtra felt the threat posed by women's public participation, the reverse was true too. The unprecedented traditionalist group's agitation against the Bill prompted women from differing faiths to unite on an issue which they increasingly saw as a gendered one. Typically, in one such meeting, the speaker, while arguing a case for firm commitment and unity among women said, 'The question concerns *our* most vital interests rather than those of *men*'.⁷¹ Likewise, a woman writing under the authority of a 'mother of several children' said that allowing a husband or stranger to have sexual intercourse with a pre-pubescent girl was an outrageous act. She added:

Women as a sex, were subject to and underwent far more excruciating pains and miseries and risks of the worst kind happening in child-bearing and child-birth, than man, the opposite sex, had ever conception of...⁷²

Therefore, she cautioned against listening to the views of men as they were not a reliable index of what women went through, and advised a severe punishment for men indulging in premature cohabitation. Women thus turned the age of consent

⁶⁸ The most publicised of these demonstrations were the Tulsi Bagh and Madhav Bagh meetings in Bombay. Leaflets carried such sensational messages as 'Violate your religion or suffer transportation for life', 'Government interferes in domestic delicate matters'. On the basis of such slogans the anti-legislationists were able to collect 10,000 signatures in a day. *Gujarati*, *NNR*, 21 February 1891 and *Vartahar*, *NNR*, 21 February 1891.

⁶⁹ *Kesari*, 24 February 1891, *NNR*, 28 February 1891; *Mahratta*, 30 November 1890, *NNR*, 6 December 1890.

⁷⁰ *Pune Vāibhav*, 7 December 1890, in *NNR*, 13 December 1890. Other vernacular newspapers, which condemned women's meetings and participation, were *Jagad-hitechchu*, *Vartahar* and *Hindu Punch*, reported in *NNR*, 7 March 1891.

⁷¹ 'Correspondence, Poona News', *Induprakāśa*, 2 March 1891, p. 4.

⁷² *Induprakāśa*, 8 December 1890.

controversy into a sex-specific case where the experience of women was privileged over the textual interpretations offered by men.

Two kinds of public participation were evident among women. They joined either as members of caste or religious-affiliated women's bodies or under the umbrella of secular women's organisations.⁷³ The proceedings of the women's meetings, as well as their petitioning, revealed no further collaboration with British feminists during the passage of the Act. However, there is no indication of disagreement between them. One obvious explanation for this is that the leadership of these organisations was entirely controlled by Indian women; another is that the firmness and confidence exhibited by them made outside help superfluous.⁷⁴

The difference between the first memorial drafted with the help of British feminists and addressed to the Queen and the later petitions gives a clue to differences in the objectives and participation of Indian women under the leadership of their own female reformers. In the first memorial under the guidance of English women, the proposed minimum age of consent for girls was fourteen years. By February 1891, when no response had been received to their memorial, women leaders like Rakhmabai Modak and Dhaklibai Sukthankar thought that the reason for the non-response to their first memorial was that fourteen years appeared too high an age limit to the imperial government and hence all of their subsequent petitions proposed twelve years as the minimum age.⁷⁵ A second difference can be discerned in the construction of arguments for raising the age of consent. While the first memorial concentrated on the anomalies of the Penal Code, the later petitions personalised the issue as one concerning the female sex. The five hundred and fourteen petitioners from the *Ārya Mahilā Samāj* argued that while representations against the Bill were by male oppositionists, as far as women were concerned, 'The feeling in favour of the Age of Consent Bill among the female classes is indeed very general wherever the object of the Bill is correctly understood.'⁷⁶ Thus not only did the issue concern women alone but it also had the full consent of the women of Maharashtra. The tone of the later petitions were also marked by a caution which is missing in the first memorial. While some petitions requested guarantees against the misuse of the criminal process (by vesting it exclusively in magistrates), others

⁷³ Examples of the first kind are Zoroastrian women's club, the Bene-Israelite women's organisation, and the Native Christian women's society. Among the second type were the *Ārya Mahilā Samāj* of Bombay and the Aryan Ladies' Association.

⁷⁴ The new-found confidence was expressed by some women in dropping their pseudonyms during this agitation, like Rakhmabai and Krupabai.

⁷⁵ Petition from the Aryan Ladies' Association, Pune, by 65 Hindu and 23 Bene-Israel women, *Proceedings*. Also petition of certain Parsi and Native Christian women, Pune, 23 February 1891 to the Governor-General of India, signed by 128 Parsi and 83 Native Christian women, in *Proceedings*, Appendix A12.

⁷⁶ A petition from Dhaklibai Sukthankar, Secretary, Arya Mahila Samaj, Bombay, 4 March 1891 to K. L. Nulkar accompanied by a Memorial of 514 'native ladies' of Bombay and Pune, *Proceedings*, Appendix A18.

asked for a less severe punishment in the case of husbands found guilty of breaching the Act.⁷⁷

Finally, the question that arises from this study is why and how was agency uniquely vested in Maharashtrian women?⁷⁸ Several external factors contributed to the development of women's consciousness in Maharashtra. The social reform movement took a different course there than in Bengal.⁷⁹ The specific case of the age of consent debate is a good illustration. In Bengal the debate hinged on the control of female sexuality and Bengali women's sexual nature.⁸⁰ On the west coast in the hands of B. G. Tilak, the debate became a nationalist issue. Even for reformers like K. T. Telang it was to show that social reform must precede political reform. For scholars like Bhandarkar, who cited scriptural sanction for the postponement of the *garbhādāna* ceremony, it was eventually to prove that such a delay in holding a religious ceremony was granted in the texts and therefore was no 'loss of religion', to the ordinary scripture-abiding Hindu and no 'danger to Hinduism' as far as the larger society was concerned. The lines on which the debate was conducted through indigenous discourse necessarily sharpened the differences for women. Clarity marked the debate by women on the age of consent as they realised that it was a gender issue rather than a national or religious one.

Yet another important difference was the slow but sure building of a regional discourse within Maharashtra during this period. There is evidence of anxiety in the way Maharashtrians painstakingly distinguished themselves from Bengal. After the publicising of the Phulmani case, when a Bengali husband killed his pre-pubescent wife in the act of intercourse, Bengal was reported as being a culturally backward region of India in the vernacular newspapers of western India. Even the progressive groups in western India cited the speeches of R. C. Mitter or Sir Stuart Bayley and believed the many allegations made about Bengali women's sexuality. Their rationale was that in a region like Bengal, where *purdah* was rife, and women were not allowed to look at men other than their close blood relations, it was only natural that Bengali women were full of sexual thoughts and craved the company of their

⁷⁷ A memorial adopted by 60 high-caste Hindu women from Ahmadabad, reported in *Times of India*, 25 February 1891, p. 5.

⁷⁸ The question is especially pertinent as the existing historiography explicitly or implicitly denies such agency to Bengali women of the same period. See footnote 4.

⁷⁹ In Bombay the social reform movement was more circumspect and less revolutionary. Under the guidance of the Prarthana Samajists it was eager to affect public opinion and developed practical ways of relating their convictions and practices to the existing social structure and thus found readier public acceptance. In Bengal it was fiery and did not therefore establish a popular base as seen in the Brahmos who, no doubt, created an integrated new philosophy of life but separated themselves from society at large. Other details of these variations are to be found in Heimsath, *Indian Nationalism and Hindu Social Reform*, pp. 14, 86-7, 104-8.

⁸⁰ It has been ably argued by Engels that the age of consent debate was a reflection of two opposing views of sexuality represented by the Bengalis and the British: 'The Age of Consent Act', pp. 122-4.

husbands before puberty.⁸¹ On the other side of the coin they represented Maharashtrian women as *purdah*-free and the region's cultural practices which made consummation of marriage before puberty an exception.⁸² The tone and colour of the debates in Maharashtra at once freed women from defending their sexuality and simultaneously set up an agenda on which they could participate on equal terms. This is epitomised in the arguments used by female petitioners who agreed that consummation of marriage before the girl reached the age of twelve was indeed rare in Maharashtra but who said that the government had to recognise the existence of the practice in other regions of India and make provisions against it.⁸³

Conclusions

In significant ways women's perceptions and their participation in the child-marriage debates of the 1890s challenged the social reformist ideology and practice of the nineteenth century. Their position in the debates was an expression of the tensions between their new-found aspirations for education, individuality, and change in conjugal relations on the one hand and the unchanging balance of power within society on the other. In their personal lives women attempted to translate the public debates about the role and position of women into practice at home where these relations were actually played out, and here they encountered insuperable obstacles. This led them to move their personal anxieties into a public arena with the child-marriage debates.

The age of consent debates gave them the opportunity to bring into public prominence their frustration in translating social reform ideals into the private, domestic sphere. It was precisely their attempt to change their role and position in the domestic realm which enabled them to create a gendered critique of child-marriage. Their articulation of the cumulative experiences of women allowed them to contextualise their problems, thus enabling them to counter the dominant, male discourse which relied on textual interpretations of the shastras. Their enduring contribution was thus a context-over-text argument.

Maharashtrian women's participation in the popular agitation over the age of consent debates of 1891 effectively takes Indian women's popular protests back into the nineteenth century.⁸⁴ Women's organised protest during the passage of the Bill was an instance of the process through which they overcame religious distinctions. The realisation that the age of consent was a 'female sex' issue united them on common ground. Male hostility to women's public participation as seen over the age of consent agitation also explains why Tilak's nationalist programme had such ready appeal in Maharashtra.

⁸¹ *Sudharak*, in *NNR*, 24 January 1891; *Subodh Patrika*, *NNR*, 21 February 1891; *Indian Spectator*, *NNR*, 14 February 1891.

⁸² This was common ground, shared by both pro- and anti-legislationists in Maharashtra.

⁸³ Petition from Secretary, *Ārya Mahilā Samāj*, Bombay, *Proceedings*.

⁸⁴ Contrary to the assumption of historians who have suggested that it was not until the passing of the Sarda Act of 1929. Cf. Forbes, 'Women and Modernity', p. 413, and Ramusack, 'Women's Organisations and Social Change', p. 203.

Women's groups in the reformist era did not possess a clear-cut ideology or managerial skills like the women's organisations of the 1930s. However, it was precisely their non-adherence to nationalist and political reformist ideologies which gave them the necessary space and freedom to unite on a gender-specific basis.⁸⁵ It also provides a case-study for the differences in women's responses in various British colonies, such as Kenya over the clitoridectomy issue.⁸⁶ In India female pressure groups could not directly influence the passing of the Act as the sexual politics of the colonial government prevented consultation with women. However, they provided essential support for male decision-makers in raising the age of consent.

⁸⁵ Adherence to nationalist ideals and allegiance to nationalist leaders probably shackled women's organisation to a lukewarm ideology of women's emancipation, where they were, 'neither feminists nor suffragists'. The standpoint of the All India Women's Conference in the child-marriage issue of 1929 is discussed in Forbes, 'Women and Modernity', pp. 414-15.

⁸⁶ For a refreshing analysis, see S. Pedersen, 'National Bodies, Unspeakable Acts: The Sexual Politics of Colonial Policy-Making', *Journal of Modern History*, 63:4, 1991, pp. 647-80.